LATIN MAXIMS.

1. **Amicus Omnibus Amicus nemini:** A friend to all, is a friend of none
2. **Aequitas Sequitur legem:** Equity follows the law.
3. **Ignorantia Juris non excusat:** Ignorance of the law is not an excuse
4. **Actus legis nemini facit injuriam:** The act of the law harms no one
5. **Quod est necessarium es licitum:** Whatever is necessary is lawful
6. **Primus inter pares:** First among equal
7. **Nemo dat quod non habet:** No man gives what he does not have
8. **Bonum Vesperum:** Good evening
9. **Bonum Mane:** Good morning
10. **Bona dies:** Good afternoon
11. **Modus Operandi:** Mode of Operation
12. **Modus Loquendi:** Mode of Speaking
13. **Modus Vivendi:** Mode of Living
14. **Ex Abundantia Cordis os Loquitur:** Out of the abundance of the heart, the mouth speaks
15. **Una Castra:** One house
16. **Veni, Vidi, Vici:** I came, I saw, I conquered
17. **Vincit qui se vincit:** He conquers, who conquers himself
18. **Ab initio:** From the beginning
19. **Amicus Curiae:** A friend of the court
20. **Juris via:** The way of law / the way of legality
21. **Ceteris Paribus:** All things being equal
22. **Tempus fugit non regamus:** Time wasted can never be regained
23. **Caveat emptor:** Let the buyer be aware
24. **Tempus fugit:** Time flies
25. **Volenti non fit injuria:** To one who is willing, no injury is done
26. **Habeas Corpus:** You shall have the body
27. **Qui facit per alium facit per se:** He who acts through an agent acts himself
28. **Cogito ergo sum:** I think, therefore I am
29. **Quidquid agendum est, bene agendum est:** Whatever must be done, must be done well
30. **Dura lex sed lex:** The law is harsh, but it is the law
31. **Pro bono publico, pro unitate bonum faciendum et malum vitandum:** For the good of the public and for unity, good must be done and evil avoided

JCY 111

LITIGATION

Litigation is the judicial process of settling disputes using legal actions.

Types:

- **Civil Litigation:** It involves disputes or disagreements between people that does not directly affect the society.
- **Criminal Litigation:** Disputes or disagreements between people which affects the peace and order of the society.

HOW TO PREPARE FOR A MOOT COURT CASE

A moot court case is a simulated court case that is designed to help intending legal practitioners prepare for a real life case.

STYLES IN MOOT COURT:

- **Pure Legal Argument:** This is like a debate and both parties are trying to prove or defend an act.
- **Mock Trial Style:** Cross-examination and Chief-in-examination are exercises that take place in this style.

Cross-examination is a legal session where a counsel (defense or plaintiff) examines or questions their witness or counsel members from the other side.

Chief-in-examination on the other hand, is when the plaintiff or defense counsel questions its witness or witnesses.

Roles In A Moot Court:

- **The Plaintiff Counsel Or The Claimant:** Proves to the judge/jury or bench that their story/argument should prevail.
- **The Defense Counsel Or Counsel For The Defendant:**

i) Defends the client against the claim or charges.
ii) Shows that the opponent side is wrong based on fact or the law. N/B: A civil debt is not a crime
iii) When facts are clearly against a client, you argue for the smallest possible loss.

- **The Judge:**
- **The Court Clerk:**

i) Reads out the case file or number
ii) Administers oath

- **The Witnesses:**

N/B: In the case where your witness is unsure of the answer to a question, the witness can claim to ‘not be in the right frame of mind’ or the counsel to the witness can raise an observation.

- **The Sergeant at Arms/The Court Security Officer:**

i) Maintains order in the court room.

FIVE MOCK COURT STEPS

1) Read and identify

- Who did what and when?
- What went wrong? [out of malice or to seek revenge]
- What was the order of the case before the case was filed
- Notify/write down clearly what exactly the plaintiff seeks, that is the "relief"

2) Spot the cause of action

- Breach of trust
- Breach of contract
- Breach of fair hearing
- Civil debt
- Defamation of character

After spotting the cause of action, identify the harm that it caused the client [emotional damage and likely harm to her reputation]

3.) Identify the law and authority

4.) The skeleton argument – IRAC

- I – Issue
- R – Rule
- A – Application of the rule
- C – Conclusion (What should the court do?)

5.) Prepare your bundle

- Evidences